CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

Nearly 250 years ago, the Framers decided to vest "[t]he executive Power" in one person—"a President of the United

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by *Keith Ellison*, Attorney General of Minnesota, and *Liz Kramer*, Solicitor General, by *Nicholas W. Brown*, Attorney General of Washington, and by the Attorneys General for their respective jurisdictions as follows: *Kris Mayes* of Arizona, *Rob Bonta* of California, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Brian L. Schwalb* of the District of Columbia, *Anne E. Lopez* of Hawaii, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Dana Nessel* of Michigan, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Raúl Torrez* of New Mexico, *Letitia James* of New York, *Jeff Jackson* of North Carolina, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, and *Josh Kaul* of Wisconsin; for the American Federation of Labor and Congress of Industrial Organizations by *Matthew J. Ginsburg*, *Maneesh Sharma*, and *Darin M. Dalmat*; for Bipartisan Former Chairs of the Federal Trade Commission by *Trisha Anderson*, *Joseph Posimato*, *Katherine Van Dyck*, and *David Strauss*; for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *Brian R. Frazelle*; for Independent Agency Board Members et al. by *Catherine M. A. Carroll*, *Bradley Girard*, *Paul R. Q. Wolfson*, *Elena Goldstein*, *Skye L. Perryman*, and *Jon Greenbaum*; for Issue One et al. by *William M. Treanor*; for the Open Markets Institute by *Jamie Crooks*; for Public Citizen by *Nicolas A. Sansone*, *Allison M. Zieve*, and *Scott L. Nelson*; for Public Knowledge by *John Bergmayer*; for the Reporters Committee for Freedom of the Press by *Bruce D. Brown* and *Lisa Zycherman*; for TechFreedom by *Corbin K. Barthold*; for Thirteen Retired Federal Judges by *Norman L. Eisen*, *Timothy J. Ford*, and *Ira Neil Richards*; for Nicholas R. Bednar et al. by *Brian A. Sutherland* and *Jessica Weisel*; for Jane Manners by *Katherine L. Pringle* and *Thomas P. Wolf*; for Legal Historian Noah A. Rosenblum et al. by *Gregory L. Diskant*; for Gwynne Wilcox by *Deepak Gupta*, *Gregory A. Beck*, and *Alisa C. Philo*; for 40 National, State, and Local Consumer, Privacy and Open Markets Groups by *F. Paul Bland*, *Seth E. Mermin*, and *David S. Nahmias*; and for 207 Members of Congress by *Jeffrey L. Fisher*, *Easha Anand*, *Brian H. Fletcher*, and *Pamela S. Karlan*.

Briefs of *amici curiae* were filed for Administrative and Constitutional Law Professors by *Alan B. Morrison*, *pro se*; for the American Antitrust Institute et al. by *Deborah A. Elman* and *Randy Stutz*; for the Bipartisan Former Commissioners of the Federal Energy Regulatory Commission

States of America." Art. II, § 1, cl. 1. The choice was not made lightly. Within living memory were the "long train of abuses and usurpations" of a King who reigned as "a Tyrant." Declaration of Independence ¶¶2, 30. Indeed, several delegates to the Constitutional Convention pushed for a multimember council instead of "unity in the Executive magistracy," which they feared would serve as "the foetus of monarchy." 1 Records of the Federal Convention of 1787, p. 66 (M. Farrand ed. 1911) (Farrand's Records) (E. Randolph). But unity won out. Our Constitution's drafters knew from experience that a "plurality in the executive"—the model in use by most States at the time—not only "diminishe[s]" the "activity, secrecy, and dispatch" necessary to ensure "good government" but "tends to conceal faults and destroy responsibility." The Federalist No. 70, pp. 423–424,

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(FERC) by *Ari Peskoe*; for the Campaign Legal Center et al. by *Tara Malloy*, *Sejal Jhaveri*, and *Alexandra Copper*; for the Cato Institute by *Thomas A. Berry* and *Brent Skorup*; for the Claremont Institute's Center for Constitutional Jurisprudence by *John C. Eastman* and *Alexander Haberbush*; for Former Members of the Equal Employment Opportunity Commission by *Eric Schnapper*; for Former Members of Multimember Boards and Commissions by *William J. Murphy*, *Aaron S. J. Zelinsky*, and *David A. Reiser*; for Former Senior White House Lawyers et al. by *Hampton Y. Dellinger*, *Harold Hongju Koh*, and *Sonia Mittal*; for the Landmark Legal Foundation by *Matthew C. Forys*, *Michael J. O'Neill*, and *Richard P. Hutchison*; for the National Whistleblower Center by *Stephen M. Kohn* and *Kayla Svihovec*; for the Pacific Legal Foundation by *Oliver J. Dunford*, *Aditya Dynar*, and *Michael Poon*; for Professors of Administrative Law et al. by *Samuel Estreicher*, *pro se*; for Patrick J. Borchers et al. by *Joseph M. Sellers* and *Richard A. Koffman*; for Ariana Cortes et al. by *Aaron Solem* and *Alyssa Hazelwood*; for Jed Handelsman Shugerman by *Richard F. Griffin, Jr.*, and *Faaris Akremi*; for Todd Harper et al. by *Vincent Levy*; for Cathy Harris by *Neal Kumar Katyal*, *Nathaniel A. G. Zelinsky*, *Samantha Bateman*, *James I. Pearce*, *Michael Kator*, *Kerrie Diane Riggs*, *Jeremy D. Wright*, and *Linda Marie Correia*; for Andrea Scoseria Katz et al. by *Christopher K. Connolly* and *Thomas A. Lloyd*; for Maud Maron by *Alan Gura*; for *Michael T. Morley, pro se*; for Victoria Nourse et al. by *Clifford M. Sloan* and *Gary DiBianco*; for Sen. Eric Schmitt by *Thomas R. McCarthy*, *J. Michael Connolly*, and *Tiffany H. Bates*; and for *Ilan Wurman*, *pro se*.

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427 (C. Rossiter ed. 1961) (A. Hamilton). With just one President in charge, they reasoned, there would be no doubt "on whom the blame or the punishment of a pernicious measure . . . ought really to fall." *Id.*, at 428.

One hundred years ago, this Court honored the Convention's choice in the seminal case of *Myers* v. *United States*, 272 U. S. 52 (1926). There, we held that the Constitution "grants to the President" the "general administrative control of those executing the laws, including the power of appointment and removal of executive officers." *Id.*, at 163–164. Because no one could "execute the laws" "alone and unaided," Chief Justice Taft explained for the Court, the President must be permitted to "select those who . . . act for him" and "remov[e] those for whom he can not continue to be responsible." *Id.*, at 117. "[T]o hold otherwise would make it impossible for the President" to fulfill his constitutional obligation "to take care that the laws be faithfully executed." *Id.*, at 164.

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Today we confront one of several regulatory agencies that deviate from this model of Presidential supervision—the Federal Trade Commission (FTC). Since its creation in 1914, the FTC has accumulated vast rulemaking, enforcement, and adjudicatory powers under more than 80 statutes. Not only does it promulgate rules that carry the force of law, but it also enforces those rules against private parties, collecting civil penalties in the billions of dollars. Its powers, however, do not belong to the President or his appointees alone; they instead belong to five Commissioners, each of whom serves for seven years and may be removed by the President only "for inefficiency, neglect of duty, or malfeasance in office." 38 Stat. 718, 15 U. S. C. § 41.

We hold that such protection from removal is contrary to the separation of powers enshrined in the Constitution.

I

When President Trump began his second term in January 2025, the FTC was led by two Republicans and three Demo-

crats. On his first day in office, he designated a new Chair, replacing President Biden's pick. See 15 U. S. C. § 41 (permitting the President to choose a Chair "from the Commission's membership"). As is customary, the former Chair, Lina Khan, resigned her seat a few weeks later, permitting President Trump to appoint a replacement (contingent, of course, on the Senate's advice and consent). In the meantime, however, the FTC would be split down the middle.

That split came to an abrupt end in March, when President Trump fired the two remaining Democratic Commissioners, Rebecca Slaughter and Alvaro Bedoya. He did not assert that they were "inefficien[t]," "neglect[ed]" their "dut[ies]," or committed "malfeasance in office," as the statute required. *Ibid.* He instead told them that their "continued service on the FTC [was] inconsistent with [his] Administration's priorities" and that they were removed from office "pursuant to [his] authority under Article II of the Constitution." App. 28.

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Slaughter promptly filed suit against the President and other executive officials, seeking declaratory and injunctive relief to restore her to office.[1] She alleged that her removal was ultra vires, violated the Administrative Procedure Act, and violated the Constitution.

The District Court agreed, granting Slaughter's motion for summary judgment. 791 F. Supp. 3d 1 (DC 2025). It acknowledged that *Myers* generally permits the President to remove "executive officers" at will, as part of his "general administrative control of those executing the laws." 791 F. Supp. 3d, at 11 (quoting *Myers*, 272 U. S., at 164). But it considered itself bound by *Humphrey's Executor* v. *United States*, 295 U. S. 602 (1935). That case, the District Court

[1] Slaughter was initially joined in her lawsuit by Bedoya, who similarly sought to be restored to office. After litigation commenced, however, Bedoya formally resigned from his position on the FTC, and the District Court dismissed his claims as moot. Thus only Slaughter's claims are at issue here.

explained, carved out an exception to *Myers*'s general rule for the FTC, which the *Humphrey's* Court described as a multimember "expert" agency that exercised solely "quasi-legislative" and "quasi-judicial" functions. 791 F. Supp. 3d, at 13, 17–18. The court declared the President's "purported removal" ultra vires and issued a permanent injunction barring interference "with Ms. Slaughter's right to perform her lawful duties." App. 90–91.

A divided Court of Appeals denied the Government's motion for a stay pending appeal. 2025 WL 2551247 (CADC, Sept. 2, 2025) (*per curiam*). The panel held that the Government has "no prospect of success on appeal," as this very issue had been settled by *Humphrey's Executor*. 2025 WL 2551247, *3. Judge Rao dissented, explaining that *Humphrey's Executor* does not license a "headless fourth branch" of independent agencies exercising "considerable executive power." 2025 WL 2551247, *13 (quoting *Trump* v. *Wilcox*, 605 U. S. 922, 923 (2025)).

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We stayed the District Court's order and granted certiorari before judgment. 606 U. S. 1051 (2025).

II

A

The Constitution vests "[t]he executive Power" in a "President of the United States of America" and instructs that he "take Care that the Laws be faithfully executed." Art. II, §§1, 3. To vest "the whole executive power" in just one person was not to suggest that he could execute the laws alone and unaided. The Federalist No. 47, at 303 (J. Madison). But it was to establish a hierarchy—a "Chief Magistrate" with whom the buck stops, and below him various "assistants or deputies" who "derive their offices from his appointment" and remain "subject to his superintendence." *Id.*, No. 72, at 436 (A. Hamilton). To remain accountable to the President, those officers must be removable by the President.

1

The idea that one President would be in charge was by no means a foregone conclusion in 1787. Just ten years earlier, the colonists had "thrown off the Yoke" of King George III and his colonial governors, 5 Papers of John Adams 26 (R. Taylor ed. 1983) (S. Adams), who had laid a "[f]oundation sufficient on which to erect a Tyranny," 1 J. Adams, Diary and Autobiography of John Adams 260 (L. Butterfield ed. 1961). Now citizens, they had no intention of reestablishing "the kingly office" by another name. 1 Papers of Thomas Jefferson 337 (J. Boyd ed. 1950). Thus the flurry of state constitutions that followed the Declaration of Independence "made of the gubernatorial magistrate a new kind of creature, a very pale reflection indeed of his regal ancestor." G. Wood, The Creation of the American Republic, 1776–1787, p. 136 (1998) (Wood); see also J. Rakove, Original Meanings 250–252 (1996). Almost every State had but a nominal Governor, who could act only with his council's consent. These early chief executives were "little more than chairmen of their executive boards." Wood 138.

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The Framers chose to depart from this model, for they had seen its flaws up close. Common was the complaint that the States' feeble and divided executives left no "effectual check" for "the instability & encroachments" of legislatures. See 2 Farrand's Records 35 (J. Madison). For "fear" of "monarchical . . . power," William Livingston lamented, the States "improvidently" devised executives "too weak & ineffacitous to operate with proper energy & vigour." 5 Papers of William Livingston 56–57 (C. Prince, M. Lustig, D. Vorhees, & R. Weiss eds. 1988).

The Convention was determined not to make the same mistake. See Wood 467. So when delegates objected to "unity in the Executive magistracy" as "the foetus of monarchy," 1 Farrand's Records 66 (E. Randolph), others could soundly reply that the concern was quite backward. "[I]nstead of being the fetus of Monarchy," they explained,

"[u]nity in the Executive" was "the best safeguard against" it—for only a "single Person" could produce the "vigor and activity" necessary to preserve the Constitution's separation of powers, and only a "single Person" could make the office "responsibl[e]" to the people. *Id.*, at 66, 109 (J. Wilson). "Give him an able Council and it will thwart him; a weak one and he will shelter himself under their sanction." 2 *id.*, at 329 (C. Pinckney). Any more than one person in charge, as James Wilson put it, "oftener serves to cover, than prevent malpractices." 1 *id.*, at 97.

That the Constitution forged a new path was not hidden from those who ratified it. Hamilton frankly conceded that only two States thus far "have intrusted the executive authority wholly to single men," The Federalist No. 70, at 424, anticipating Roger Sherman's critique of the Constitution that every other government has "a Council of advice, without which the first magistrate could not act," 1 Farrand's Records 97. To Hamilton, however, that was the point. Unlike most States, the Federal Government would have "a vigorous executive" who could act with "secrecy . . . and dispatch"—and would not be able to "conceal [his] faults" behind a council. The Federalist No. 70, at 423–424, 427. "[A] plurality in the executive," Hamilton argued, "tends to conceal faults and destroy responsibility." *Id.*, at 427. "It often becomes impossible, amidst mutual accusations, to determine on whom the blame or the punishment of a pernicious measure, or series of pernicious measures, ought really to fall." *Id.*, at 428. If the executive power were not placed in a "single hand," then "the people" would be "deprive[d] . . . of the two greatest securities they can have for the faithful exercise of any delegated power"—"the restraints of public opinion" and the "opportunity of discovering with facility and clearness the misconduct of the persons they trust." *Id.*, at 424, 428–429.

In opting for one President, however, the Framers did not opt for the President to work alone. They knew (as our first

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President would write) that it would be "impossib[le]" for just "one man . . . to perform all the great business of the State." 30 Writings of George Washington 334 (J. Fitzpatrick ed. 1939). So they anticipated that Congress would "institut[e] the great Departments" and allow the President to "appoint[ ] officers therein, to assist [him] in discharging the duties of his trust." *Ibid.* As James Wilson explained at the Convention, "there can be no good Executive without a responsible appointment of officers to execute." 2 Farrand's Records 538–539.

These officers were to serve as envoys of the President, not his equals. Their very purpose, after all, was to assist him "to discharge *his* arduous employment," not *theirs*. 4 Debates on the Constitution 109 (J. Elliot 2d ed. 1891) (J. Iredell) (emphasis added). As such, the Government's "ministers" were required to "exercise their functions in subordination to the Executive," whether their tasks were big or small. 2 Farrand's Records 54 (G. Morris). Hamilton made the same point. "The persons . . . to whose immediate management" the President's powers "are committed ought to be considered as the assistants or deputies of the Chief Magistrate, and on this account they ought to derive their offices from his appointment, at least from his nomination, and ought to be subject to his superintendence." The Federalist No. 72, at 436. In so structuring the Government, the Convention "rejected a committee-style Executive Branch in favor of a unitary and accountable President, standing under law, yet over" his department heads. A. Amar, Some Opinions on the Opinion Clause, 82 Va. L. Rev. 647 (1996). It helped in reaching that conclusion, of course, that everyone at the Convention knew who that President would be—the Convention's presiding officer, George Washington. See J. Flexner, George Washington and the New Nation: 1783–1793, pp. 133–134 (1970).[2]

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[2] Indeed, Washington himself was known to favor a capable, vigorous, and unified Executive Branch. See G. Phelps, George Washington and American Constitutionalism 56, 142–145 (1993). Throughout the Revolu-

Because these officers were subject to the President's superintendence, they had to be removable by him at will. For one, that was just part of what it meant to wield "the executive power," as it was understood at the time of ratification. Jefferson wrote as early as 1780 that "[t]he power of appointing and removing executive officers [is] inherent in [the] Executive," as "[h]e who appoints may remove." 4 Papers of Thomas Jefferson 281 (1951). And as to this power, the Constitution's words were chosen carefully—it was the President who would "appoint" the principal "Officers of the United States," with the Senate providing "Advice and Consent." Art. II, § 2, cl. 2; cf. The Federalist No. 66, at 404 (A. Hamilton) ("[I]n all the governments with which we are acquainted . . . those who hold office during pleasure [are] dependent on the pleasure of those who appoint them"). If the Framers intended to depart from this convention, one might have expected them to say so.

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For another, the power to remove at will was a necessary corollary of the Constitution's design. The "unity" of the Executive Branch would be "destroyed," Hamilton wrote, if it were vested "ostensibly in one man, subject in whole or in part to the control and co-operation of others, in the capacity of counselors to him." *Id.*, No. 70, at 424. But that is precisely what would occur if the President's so-called assistants

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tionary War, he had complained about the "vital and inherent Principle of Delay . . . in transacting Business" through the Continental Congress's multimember executive committees, 3 Writings of George Washington 12 (W. Ford ed. 1889), which he felt led to "unpunishable Neglect of Duty," *id.*, at 34. Even in peacetime, he saw the Confederation Congress as "not only slow, debilitated, and liable to be thwarted by every breath, but . . . defective in that secrecy, which for the accomplishment of many of the most important national purposes is indispensably necessary." 29 *id.*, at 153 (J. Fitzpatrick ed. 1939). It is little wonder then, that the Convention created a powerful Presidency, one fit for Washington. As South Carolina delegate Pierce Butler put it, the Convention's members "cast their eyes towards General Washington as President; and shaped their Ideas of the Powers to be given to a President, by their opinions of his Virtue." 3 Farrand's Records 301–302.

could exercise *his* power against *his* wishes. Only if the President's deputies were removable at will would they truly be "subordinate" to "the sole executive magistrate." See *id.*, No. 47, at 303 (J. Madison). And only then could the Constitution live up to James Iredell's boast that "the President" would "be *personally responsible* for everything." Answers to Mr. Mason's Objections to the New Constitution (1788), in Pamphlets on the Constitution of the United States 348 (P. Ford ed. 1888); see also 1 Writings of James Monroe 331 (S. Hamilton ed. 1898) ("I would repose the whole trust of this department in one officer, so he alone should be responsible for all its transactions"). Text and structure thus both taught that the President had to be able to remove those who fail to live up to their duties, lest he fail to live up to his.

2

This aspect of the President's role was confirmed in the Constitution's first year—and in the years that followed. The result was a "regular course of practice" that "liquidate[d] & settle[d]" the President's power of removal, 8 Writings of James Madison 450 (G. Hunt ed. 1908), a construction followed by every branch of "the Genl. Govt, . . . thro all the vicissitudes of Party," 9 *id.*, at 333 (1910). See also The Federalist No. 37, at 228–229 (J. Madison).

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That practice began in the First Congress. When it first met in 1789, one of its first and most pressing tasks was to establish the first executive departments—and with them the first "Heads of Departments." Art. II, §2, cl. 2. In doing so, it debated how those officers should be removed. Some felt that the Senate had to consent to all removals, as one of the two entities that "appoint[ed]" the official in the first place. 1 Annals of Cong. 472–473 (Rep. Gerry). Others argued that the Constitution was silent on the question, giving Congress the "right" to select whether an officer may be removed, and if so by whom—"the President, the President and Senate, or the Legislature, or any other person

whom they might introduce into office, merely for that particular purpose." *Id.*, at 521 (Rep. Sedgwick). And a third group contended that removal was part of "the Executive power" vested in the President, which "the Legislature has no right to diminish or modify." *Id.*, at 463 (Rep. Madison).

By this point, the arguments made by the third group will sound familiar. Madison led the charge. "I conceive that if any power whatsoever is in its nature Executive," and thus vested in the President, "it is the power of appointing, overseeing, and controlling those who execute the laws." *Ibid.* And if that is so, he explained, then the "power of removal from office" must follow. *Id.*, at 499. For it is only with that power that "the chain of dependence [can] be preserved"—"the lowest officers, the middle grade, and the highest" made to "depend, as they ought, on the President, and the President on the community." *Ibid.* Others agreed. Some focused on text. "[T]he power of removal [is] an Executive power," Representative George Clymer said, "and as such belong[s] to the President alone, by the express words of the Constitution." *Id.*, at 382. Others focused on structure. "The Constitution places all Executive power in the hands of the President," Representative Fisher Ames explained, "and could he personally execute all the laws, there would be no occasion for establishing auxiliaries." *Id.*, at 474. "But in order that he may be responsible to his country," he continued, "he must have a choice in selecting his assistants, a control over them, with power to remove them when he finds the qualifications which induced their appointment cease to exist." *Ibid.*

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The third group emerged victorious. They successfully convinced the House of Representatives to delete a clause in the draft bill that said that the Secretary of Foreign Affairs was "to be removable by the President," for such language would "ha[ve] the appearance of conferring the power upon him" when in fact it was his all along. *Id.*, at 505, 507 (Rep. Benson). What they favored instead—and what they got—

was a new clause that assumed "the power of removal to be in the President," so as to "establish a legislative construction of the Constitution." *Id.*, at 578 (Rep. Benson). The bill as amended passed the House, and then the Senate, a feat that was repeated first with laws establishing the Department of War and then again with the Treasury. These statutes thus "implicitly endorsed the view that the President had a constitutional power to remove executive officers." A. Bamzai & S. Prakash, The Executive Power of Removal, 136 Harv. L. Rev. 1756, 1793 (2023) (Bamzai & Prakash).

Congress's confirmation of the President's power quickly took hold—and even gained fame as "the Decision of 1789." "After very long debates," Madison wrote to Jefferson, Congress had endorsed the view that "the Executive function of removal" was "vested in the President," a decision "most consonant to the text of the Constitution" and "to the requisite responsibility and harmony in the Executive Department." 16 Documentary History of the First Federal Congress 893 (C. Bickford, K. Bowling, H. Veit, & W. diGiacomantonio eds. 2004). Even those who opposed Congress's decision recognized that the decision had been made. Take Representative Richard Bland Lee, who had argued that the question of who may remove officers was up to "[t]he Legislature," as it could "create and establish offices" as it saw fit. 1 Annals of Cong. 525. After the bills had been enacted, Lee wrote that it "was determined in the affirmative" that the President "had, or ought to have, from a fair Construction of the constitution," the power to remove his own appointees. 16 Documentary History of the First Federal Congress, at 866–867. And even those far removed from the debates saw the issue as settled, including Chief Justice Marshall, see 5 J. Marshall, The Life of George Washington 199–200 (1807) (Marshall) (the decision was "a full expression of the sense of the legislature"), Chancellor Kent, see 1 J. Kent, Commentaries on American Law 289–290 (1826) (the

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decision "firmly and definitively settled" the matter), and Justice Story, 3 J. Story, Commentaries on the Constitution of the United States § 1537, p. 395 (1833) (Story) (expressing doubts about the decision from first principles, but noting that "[t]he public . . . acquiesced in this decision" and that it "has not been questioned on many other occasions").

Early Presidents of all persuasions, too, hewed to the Decision of 1789. Washington saw it as his "indispensable duty" to remove officers who failed to live up to his expectations. 36 Writings of George Washington 216 (1941). His Cabinet agreed, taking the stance that the ability to "remove from office" was an "essential attribute of Executive power." 20 Papers of George Washington: Presidential Series 355, 357, n. 2 (D. Hoth & W. Ferraro eds. 2019). The first President Adams said the same. See 20 Papers of John Adams 150–151 (S. Georgini et al. eds. 2020) (noting his support for "the President['s] Power of Removal, according to the Constitution"). So did Jefferson. See 4 Papers of Thomas Jefferson, at 281 (the power to "remov[e] executive officers [is] inherent in [the] Executive"). So did Madison. See 2 Papers of James Madison 192 (D. Mattern, J. Stagg, M. Johnson, & A. Colony eds. 2013) (one of the "[c]onstitutional attributes of the Executive" is to determine "[t]he tenure of the office" of subordinates). So did Monroe, along with the second President Adams. 7 Memoirs of John Quincy Adams 424–425 (C. Adams ed. 1875) (citing Monroe for the view that "the tenure of all subordinate Executive offices" is "necessarily the pleasure of the chief by whom they were commissioned," and agreeing with "the principle established by Mr. Monroe").

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And so did Jackson—much to Congress's dismay. Unlike his predecessors, who (except for Jefferson) utilized their removal power sparingly, Jackson fired hundreds "of subordinates for personal and partisan reasons." L. White, The Jacksonians: A Study in Administrative History, 1829–1861, p. 33 (1954) (White); see also *id.*, at 307–308. But even Jackson's most vehement critics acknowledged that he had the

power to do as he pleased. "I consider it . . . a settled point," Senator Daniel Webster said, "settled by construction, settled by precedent, settled by the practice of the Government, and settled by statute." 11 Cong. Deb. 461 (1835). When Webster tried to unsettle the Decision of 1789 through new legislation, the effort failed, only further cementing the President's power. See White 41–44. As Webster—still in the Senate—put it 15 years later:

> "[S]ince the practice has become a settled practice, since every Administration has indulged in it, and since it must now be considered, as the legal construction of the Constitution, . . . it follows . . . that this power, thus legally vested in the President, must be exercised by him as independently of our control as any other power that is to be exercised by him under the Constitution." Cong. Globe, 31st Cong., 1st Sess., 1126 (1850).

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B

What text, history, and structure settle, our precedent confirms—the President may remove his subordinates at will.

1

Twice in the 19th century, we reaffirmed what the First Congress had held. The text of the Constitution "is silent with respect to the power of removal from office," we noted in our first case on the subject. *Ex parte Hennen*, 13 Pet. 230, 258 (1839). But "it was very early adopted, as the practical construction of the Constitution," that the power "to remove, where the tenure of the office was not fixed by the Constitution," was "vested in the President alone." *Id.*, at 259. "And such would appear to have been the legislative construction of the Constitution" too, given "the organization of the three great departments" "in the year 1789." *Ibid.* Our second case was of a piece. "[T]he decision of Congress in 1789, and the universal practice of the Government under

it," we explained, "ha[s] settled the question beyond any power of alteration." *Parsons* v. *United States*, 167 U. S. 324, 330 (1897).

Our landmark decision, however, came 100 years ago in *Myers* v. *United States*, 272 U. S. 52. That case arose from an unlikely source—a dispute over management of the post office in Portland, Oregon. See *id.*, at 106. Under an 1876 statute, the President had to receive the "advice and consent of the Senate" not only to *appoint* postmasters but also to *remove* them. §6, 19 Stat. 80. For reasons that are now lost to history, President Wilson fired Portland's postmaster, Frank Myers, and did so without the Senate's consent. 272 U. S., at 106–107. Myers sued for backpay. See *id.*, at 106.

In a scholarly opinion, Chief Justice Taft rejected Myers's suit and reaffirmed the President's power to fire his subordinates at will. That power arose, he wrote for the Court, from the Constitution's text, history, and structure, just as the First Congress had held in 1789. See *id.*, at 136. "The vesting of the executive power in the President was essentially a grant of the power to execute the laws," Chief Justice Taft explained. *Id.*, at 117. "As he is charged specifically to take care that [the laws] be faithfully executed, the reasonable implication," he continued, "was that as part of his executive power" he must be able to "remov[e] those for whom he can not continue to be responsible." *Ibid.* "Mr. Madison and his associates" made this same point, the Chief Justice noted, and they "dwelt at length upon the necessity there was for construing Article II to give the President the sole power of removal in his responsibility for the conduct of the executive branch." *Ibid.*

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But Chief Justice Taft emphasized that it was not just the First Congress that had come to this conclusion. The First Congress supplied "a precedent upon which many future laws . . . would be based"—and if it had erred, the next Congresses would have "dissent[ed] and depart[ed]" from its view. *Id.*, at 136. Quite the opposite occurred, the Chief

Justice explained. The Decision of 1789 "was soon accepted as a final decision of the question by all branches of the Government." *Ibid.* For "74 years, there was no act of Congress, no executive act, and no decision of this Court at variance with the declaration of the First Congress." *Id.*, at 163.

In the wake of the Civil War, Chief Justice Taft noted, Congress sought to "reverse this constitutional construction"—but in the end only confirmed it. *Id.*, at 164. "This reversal grew out of the serious political difference" between President Johnson—a Jacksonian Democrat—and congressional Republicans, who boasted "a two-thirds majority" in both Houses of Congress. *Id.*, at 164–165. Over Johnson's veto, Congress sought to "curtail the then acknowledged powers of the President" with the Tenure of Office Act, which required him to receive the Senate's consent before firing most officers. *Id.*, at 165–166.

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"[T]he injury and invalidity" of the law was "immediately recognized by the Executive and objected to"—and not just by Johnson. *Id.*, at 167. "General Grant, succeeding Mr. Johnson in the Presidency"—and no fan of Johnson or his program—"earnestly recommended in his first message the total repeal" of the law. *Id.*, at 167–168. "What faith can an Executive put in officials forced upon him?" Grant asked. *Id.*, at 168. "How will such officials be likely to serve an Administration which they know does not trust them?" *Ibid.* Despite Grant's efforts, "[t]he feeling growing out of the controversy with President Johnson retained the act on the statute book"—and led to one other such law, the one for postmasters at issue in that very case—"until 1887," when the Tenure in Office Act was repealed. *Ibid.*

What these events revealed, Chief Justice Taft wrote, was not Presidential "acquiescence" but resistance, a consistent rejection of "the validity of such legislation" as incompatible with "the legislative action of 1789." *Id.*, at 172–173. At issue in *Myers*, then, as the Chief Justice saw it, was whether

"to set aside" the First Congress's "construction, thus buttressed, and adopt an adverse view," contrary to the Constitution's text, history, and structure. *Id.*, at 175. The Court refused to do so. It hewed instead to the "constitutional construction . . . reached by the First Congress of the United States . . . and acquiesced in by the whole Government for three-quarters of a century." *Id.*, at 176. Any law to the contrary, the Court concluded, was "in violation of the Constitution, and invalid." *Ibid.*

2

While *Myers* was perhaps our best word on the subject, it was not our last.

a

Just nine years after *Myers*, we handed down *Humphrey's Executor*, 295 U. S. 602. The case arose out of President Roosevelt's decision to fire one of President Hoover's appointees to the Federal Trade Commission, William Humphrey, two years into Humphrey's seven-year term. Humphrey lauded Hoover "as the foremost figure of the world," a man who fought back against "the demagogue, the fanatic, the reformer and the fool." Washington, D. C., Evening Star, Mar. 11, 1932, p. D11, col. 8. On the Commission, Humphrey sought to do the same. He often spoke to the press, and described the FTC variously as "a publicity bureau" used "to spread Socialistic propaganda," Boston Globe, Dec. 14, 1926, p. 5, cols. 3–4, a "bureaucracy gone insane," N. Y. Times, Feb. 3, 1929, p. 19, col. 1, and "an instrument of oppression and disturbance and injury," Orlando Evening Star, Jan. 7, 1931, p. 3, col. 3. Roosevelt saw matters differently, and requested Humphrey's resignation. Humphrey refused, so Roosevelt fired him in a one-line letter that did not specify a cause for his removal—seemingly contrary to a statute permitting removal of Commissioners only for "inefficiency, neglect of duty, or malfeasance in office." §1, 38 Stat. 718.

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Humphrey died soon thereafter, and the executor of his estate sued for backpay. See 295 U. S., at 618–619.

On a day that New Dealers would dub "Black Monday," the Court ruled unanimously against the President—as it did in two other cases decided that same day, *A. L. A. Schechter Poultry Corp.* v. *United States*, 295 U. S. 495 (1935), and *Louisville Joint Stock Land Bank* v. *Radford*, 295 U. S. 555 (1935). See A. Schlesinger, The Politics of Upheaval 279–290 (1960). *Schechter* and *Radford* were quite a blow to the President, invalidating aspects of his signature legislation. *Schechter* found an unconstitutional delegation of legislative power in a statute that gave the President free rein to prescribe "standards of fair competition" businesses were obliged to follow. 295 U. S., at 534, 542. And *Radford* found a violation of the Takings Clause in a statute that allowed farmers who defaulted on their mortgages to retain possession of their property for years on end. 295 U. S., at 575–576, 601–602.

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Having to contend with *Myers*, *Humphrey's* said far less. Justice Sutherland, writing for the Court, started by reaffirming that the President possesses "the exclusive and illimitable power" to remove "all purely executive officers," just as *Myers* held. 295 U. S., at 627–628. He then pivoted. There are some presidentially appointed officials, he explained, who may perform "executive function[s]" but exercise "no part of the executive power." *Id.*, at 628. And for those officials, "the decision in the *Myers* case cannot be accepted as controlling." *Id.*, at 627.

The Court held that William Humphrey was one such official. That was because the FTC's duties were very limited—they were "neither political nor executive, but predominantly quasi-judicial and quasi-legislative." *Id.*, at 624. When courts requested the FTC's help as a "master in chancery" to recommend appropriate remedies in antitrust litigation, for instance, it acted solely as a judicial aid. *Id.*, at 628. When Congress requested the FTC's help to "mak[e]

investigations and reports" on certain topics, it acted solely as a legislative aid. *Ibid.* And when it brought (and adjudicated) charges against corporations it suspected of using "unfair methods of competition" in commerce, it acted "in part quasi-legislatively and in part quasi-judicially." *Ibid.* Because these quasi functions did not require the use of "executive power," Justice Sutherland reasoned, Humphrey needed to answer only to Congress and the courts. *Ibid.* Although the President may be the "master in his own house," he warned, he may not "impos[e] his control in the house of another." *Id.*, at 630.

b

From the start, *Humphrey's* was tethered to a highly circumscribed and almost fictional view of the FTC's role. *Humphrey's* by its terms applied only to agencies that occupy "no place in the executive department," are "independent of executive authority," and exercise "no part of the executive power." *Id.*, at 625, 628. Indeed, Justice Sutherland took pains to emphasize that "the character of the office"—executive or nonexecutive—would determine the result of future cases, and to reiterate that the Court's decision was limited "to officers of the kind here under consideration." *Id.*, at 631–632.

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In later cases, although *Humphrey's* announced dividing line remained intact, more and more functions, we concluded, in fact fell on the executive side of that line—and thus within the President's exclusive control. Where *Humphrey's* suggested that the power to enforce the law against particular parties could be merely "quasi-judicial," or "in aid" of federal courts, see *id.*, at 628, we held the opposite. "A lawsuit is the ultimate remedy for a breach of the law," we explained in 1976, "and it is to the President, and not to the Congress, that the Constitution entrusts the responsibility to 'take Care that the Laws be faithfully executed.'" *Buckley* v. *Valeo*, 424 U. S. 1, 138 (*per curiam*) (quoting Art. II, §3).

And where *Humphrey's* suggested that the power to "fill[ ] in" "the details" of a "general standard" could be merely "quasi-legislative," or "in aid" of Congress, 295 U. S., at 628, we again held the opposite. Although "some administrative agency action . . . may resemble 'lawmaking,'" we explained in 1983, when an agency exercises "legislatively delegated authority" to regulate private conduct, it exercises "[e]xecutive" power. *INS* v. *Chadha*, 462 U. S. 919, 953, n. 16; see also *Bowsher* v. *Synar*, 478 U. S. 714, 733 (1986) ("Interpreting a law enacted by Congress to implement the legislative mandate is the very essence of 'execution' of the law.").

Soon enough, we recognized that *Humphrey's* flunked even its own test. "[I]t is hard to dispute that the powers of the FTC," even "at the time of *Humphrey's Executor*," we explained in 1988, "would at the present time be considered 'executive,' at least to some degree." *Morrison* v. *Olson*, 487 U. S. 654, 690, n. 28. Not one for understatement, Justice Scalia observed in dissent that the Court had "swept" *Humphrey's* "into the dustbin of repudiated constitutional principles." 487 U. S., at 725. The Court put the matter more delicately, but no less definitively. "We undoubtedly did rely on the terms 'quasi-legislative' and 'quasi-judicial'" in *Humphrey's*, the Court noted, "but our present considered view is that" the constitutional question "cannot be made to turn on" such "rigid categories," at least for inferior officers. 487 U. S., at 689. Contra, *post*, at 485 (SOTOMAYOR, J., dissenting) (asserting that *Morrison* v. *Olson* in fact "applied and expanded *Humphrey's*").

Fast forward another few decades, and *Humphrey's* premises had been further undermined. In two cases, *Free Enterprise Fund* v. *Public Company Accounting Oversight Bd.*, 561 U. S. 477 (2010), and *Seila Law LLC* v. *Consumer Financial Protection Bureau*, 591 U. S. 197 (2020), we again considered the permissibility of restrictions on the President's power of removal. In both cases, we reiterated *Myers*'s rule that the President exercises "general administra-

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tive control of those executing the laws" and thus must be able to "remov[e] those for whom he can not continue to be responsible." *Free Enterprise Fund*, 561 U. S., at 492–493 (quoting *Myers*, 272 U. S., at 117, 164); *Seila Law*, 591 U. S., at 214 (same). In both cases, we emphasized that *Humphrey's* had to be read "on its own terms," and thus applies only to agencies that perform "'specified duties as a legislative or as a judicial aid.'" *Seila Law*, 591 U. S., at 215, 219, n. 4 (quoting *Humphrey's Executor*, 295 U. S., at 628); see *Free Enterprise Fund*, 561 U. S., at 493. And in both cases, we refused to extend *Humphrey's* to a "new situation"—in *Free Enterprise Fund*, two layers of for-cause removal within an agency, 561 U. S., at 483, and in *Seila Law*, for-cause removal protection for the sole head of an agency, 591 U. S., at 220. As we put it in *Seila Law*, *Humphrey's* is not a "freestanding invitation for Congress" to limit the President's constitutional power. 591 U. S., at 228.

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Humphrey's framework, in short, has not withstood the test of time. While *Humphrey's* was surely right to focus on "the character of the office" at issue, 295 U. S., at 631, and surely right to say that "purely executive" powers must be controlled by the President, *id.*, at 632, we long ago abandoned the notion that there are some powers that are only *partly* executive. Forty years have now passed, in fact, since we recognized that the FTC exercises executive power—and did so even in 1935, when *Humphrey's* was decided. See *Morrison*, 487 U. S., at 690, n. 28; *id.*, at 724–725 (Scalia, J., dissenting); see also *Seila Law*, 591 U. S., at 216, n. 2. And more than 200 years have passed since we recognized that the Constitution "vests the whole executive power in the President" alone. *Osborn* v. *Bank of United States*, 9 Wheat. 738, 819 (1824) (Marshall, C. J., for the Court).

At this point, all that is left of *Humphrey's* is its observation that an agency that "exercises no part of the executive power" need not fall within the rule of Presidential removal. 295 U. S., at 628; see *Mistretta* v. *United States*, 488 U. S.

361, 423–425, and n. 3 (1989) (Scalia, J., dissenting) (explaining that *Humphrey's* stands only for the proposition that there would be "no strict constitutional impediment to a 'branchless' agency" that exercises "no governmental power"). If Congress wishes to establish independent agencies to assist it with its functions, it may do so. Cf. *Buckley*, 424 U. S., at 137–138. But it may not foist those agencies upon the President, and thus deprive him of "the executive power vested [in him] by the Constitution"—something *Humphrey's* itself never purported to permit. *Humphrey's Executor*, 295 U. S., at 628.

c

If anything more *is* left of *Humphrey's*, we overrule it. *Humphrey's* has for decades been a result in search of a rationale. As we have often said, *stare decisis* is not an "inexorable command," *Payne* v. *Tennessee*, 501 U. S. 808, 828 (1991), and is at its weakest in constitutional cases, where only we may readily fix our own mistakes, *Agostini* v. *Felton*, 521 U. S. 203, 235 (1997). Our precedents about precedent teach that a number of factors are relevant. Here, every factor—the "quality" of the decision's reasoning, its "consistency" with our other cases, the "workability" of its rule, and the interests of those who have "reli[ed]" on it, *Knick* v. *Township of Scott*, 588 U. S. 180, 203 (2019)—counsels in favor of letting *Humphrey's* go.

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Humphrey's has been difficult to make sense of from the start. "[O]nly by blind feats of definition" could the Court transform powers that are quintessentially executive—investigative and prosecutorial alike—into nonexecutive "quasi-legislative" and "quasi-judicial" functions. P. Strauss, The Place of Agencies in Government, 84 Colum. L. Rev. 573, 625 (1984). As Justice Jackson memorably put it, *Humphrey's* "retreat to the qualifying 'quasi' is implicit with confession that all recognized classifications have broken down, and 'quasi' is a smooth cover which we draw over our confusion as we might use a counterpane to conceal a disordered bed."

FTC v. *Ruberoid Co.*, 343 U. S. 470, 487–488 (1952) (dissenting opinion). When an agency "executes" a congressional mandate against private parties, it exercises executive power—no ifs, ands, or quasis about it.

For that reason, *Humphrey's* is now far out of step with our cases, which have all but limited it to its facts. See *supra*, at 447–448. We long ago retreated from *Humphrey's*. We applied it only once, in 1958, to a solely adjudicatory body that dealt with a limited category of claims for compensation from those imprisoned or interned in the Second World War. *Wiener* v. *United States*, 357 U. S. 349, 355–356. And even then, our constitutional analysis spanned only one brisk paragraph, as the case focused on the question whether the statute limited the President's power at all. See *id.*, at 356. Since then, we have undermined *Humphrey's* premises at every turn. To persist in *Humphrey's* would require us to depart from almost every case on the subject we have decided since.

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Little surprise, then, that no one knows how to apply *Humphrey's* in practice. Does it protect all multimember agencies? See *Wilcox* v. *Trump*, 775 F. Supp. 3d 215, 234 (DC 2025). Or only those that are balanced along partisan lines? See *Space Exploration Technologies Corp.* v. *NLRB*, 151 F. 4th 761, 777–778 (CA5 2025). Those that wield some executive power, but not a lot? See *Consumers' Research* v. *Consumer Prod. Safety Comm'n*, 98 F. 4th 646, 652 (CA5 2024) (Oldham, J., dissenting from denial of rehearing en banc). Or only those that do not wield the President's "conclusive and preclusive" powers? See Brief for Respondent 25–28. Or perhaps it is only those that are "materially indistinguishable from the 1935 FTC"? See *Harris* v. *Bessent*, 2025 WL 980278, *15 (CADC 2025) (Walker, J., concurring). With its indeterminacy and unpredictability, *Humphrey's* "has undermined the very 'rule of law' values that *stare decisis* exists to secure." *Loper Bright Enterprises* v. *Raimondo*, 603 U. S. 369, 411 (2024) (quoting *Michi-*

gan v. *Bay Mills Indian Community*, 572 U. S. 782, 798 (2014)); see also *In re Aiken County*, 645 F. 3d 428, 442–446, and nn. 3–4 (CADC 2011) (Kavanaugh, J., concurring).

All that is left is reliance, upon which Slaughter (and the dissent) rely. Slaughter argues that Congress has relied upon *Humphrey's* to create agencies that are "insulated from presidential control." Brief for Respondent 15; see also *post*, at 512–518 (SOTOMAYOR, J., dissenting). That is precisely the problem. Despite what *Humphrey's* may say, independent agencies are not "independent" in the sense that they are free of the President and thus responsive "only to the people of the United States." 295 U. S., at 625. Independent agencies are insulated "from the President," "not from politics." *FCC* v. *Fox Television Stations, Inc.*, 556 U. S. 502, 523 (2009) (plurality opinion). "As a practical matter, successful insulation of administration from the President—even if accomplished in the name of 'independence'—will tend to enhance Congress's own authority over the insulated activities." E. Kagan, Presidential Administration, 114 Harv. L. Rev. 2245, 2271, n. 93 (2001). Placing the power to administer laws in officers who enjoy "freedom from Presidential oversight (and protection)," in other words, does not deliver us to a promised land of technocratic governance—it often results only in an "increased subservience to congressional direction." *Fox Television*, 556 U. S., at 523 (plurality opinion). Congress may well have relied on *Humphrey's* in taking more power for itself, but that is hardly one of the "legitimate" reliance interests that our precedents contemplate. *South Dakota* v. *Wayfair, Inc.*, 585 U. S. 162, 186 (2018) (internal quotation marks omitted); cf. *NLRB* v. *Noel Canning*, 573 U. S. 513, 571–572 (2014) (Scalia, J., concurring in judgment). No branch may rely on adverse possession to claim power that the Constitution vests elsewhere.[3]

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[3] The dissent nevertheless insists that "[i]ndependence was centrally important to Congress in creating these agencies" and indeed that "[a]t no point was it proposed that a commission ought to be set up unless it be

The dissent contends that we ignore the reliance interests of "[o]rdinary Americans and regulated firms alike." *Post*, at 518. Quite the contrary. "In its valiant search for reliance interests," it is "the dissent [that] somehow misses maybe the most important one: the reliance interests of the American people . . . in the preservation of our constitutionally promised liberties." *Ramos* v. *Louisiana*, 590 U. S. 83, 110–111 (2020) (plurality opinion of GORSUCH, J., joined by, *inter alios*, SOTOMAYOR, J.). "The diffusion of power carries with it a diffusion of accountability." *Free Enterprise Fund*, 561 U. S., at 497. When power is exercised well, the people know whom to thank; when power is exercised poorly, they know whom to blame—and whom to fire. That is the very premise of our system of government. See The Federalist No. 70, at 424 (A. Hamilton) ("The ingredients which constitute safety in the republican sense are a due dependence on the people, and a due responsibility."). We adhere to that system today not in spite of the reliance interests of all Americans but because of them.

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independent." *Post*, at 514–515 (internal quotation marks omitted). To the extent that consideration is relevant, it is relevant only in the context of severability. In our prior cases, "when confronting a constitutional flaw in a statute" like the one before us, we have sought to limit "the solution to the problem," severing the invalid removal provision "while leaving the remainder intact." *Free Enterprise Fund* v. *Public Company Accounting Oversight Bd.*, 561 U. S. 477, 508 (2010) (internal quotation marks omitted); see also *Seila Law LLC* v. *Consumer Financial Protection Bureau*, 591 U. S. 197, 233–238 (2020) (opinion of ROBERTS, C. J., joined by ALITO and KAVANAUGH, JJ.) (deeming a removal provision severable); *id.*, at 296–297 (KAGAN, J., joined by Ginsburg, Breyer, and SOTOMAYOR, JJ., concurring in judgment with respect to severability and dissenting in part) (same). If the dissent now disagrees with that approach, and believes that Congress generally "would have preferred no [agency] at all to [an agency] whose members are removable at will," *Free Enterprise Fund*, 561 U. S., at 509, it is free to urge as much in a case in which the severability question is before us. In any event, the solution to "an Executive Branch that Congress never dreamed of establishing," *post*, at 517 (SOTOMAYOR, J., dissenting), is not a headless fourth branch that the Framers never dreamed of establishing.

III

A

With these principles in mind, this is not a close case. The FTC's for-cause removal provision violates the separation of powers. In its present form, the FTC enforces and administers some 80 statutes, which cover almost every facet of our Nation's economy. The tasks it undertakes are "the very essence of 'execution' of the law"—precisely the President's constitutional role. *Bowsher*, 478 U. S., at 733.

First, the FTC has the power to promulgate substantive rules that carry the force of law. In the consumer-protection realm, for instance, the FTC is tasked with giving content to the startlingly abstract idea of "acts or practices which are unfair or deceptive." 15 U. S. C. § 57a(a)(1)(B). In other areas, it must, for example, determine what "documentary material and information" one company must provide when it wishes to acquire another, § 18a(d), decide when and how websites must seek "verifiable parental consent" when their services collect children's personal information, § 6502(b), and "prescribe as necessary or appropriate in the public interest or for the protection of United States citizens" rules barring the use of any "manipulative" technique in the sale of gasoline, 42 U. S. C. § 17301. The power to flesh out such statutory regimes—and to do so through discretionary actions, largely outside the remit of courts—is executive through and through. *Seila Law*, 591 U. S., at 218–220.

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Second, the FTC not only investigates businesses to ensure they comply with its statutes and rules, 15 U. S. C. §§ 43, 46(a), 49, but enforces those statutes and rules through in-house adjudications. Indeed, it may even place the onus on a private party to comply with its orders—on pain of monetary penalties—before the case reaches the courts. See § 45(g)(2). This power, too, is executive. *Seila Law*, 591 U. S., at 219 (discussing the ability to "unilaterally issue final decisions" in "administrative adjudications").

And third, the FTC files civil suits on behalf of the United States in federal court. It may select its remedies freely—from injunctions, § 53(b), to civil penalties, § 45(m), to any relief "necessary to redress injury to consumers," including the "refund of money or return of property," § 57b(b).[4] As we have said many times, the "discretionary power to seek judicial relief" lies at the very core of executive authority. *Buckley*, 424 U. S., at 138; see also, *e. g.*, *United States* v. *Texas*, 599 U. S. 670, 678–679 (2023) (it is up to the Executive to "decide how to prioritize and how aggressively to pursue legal actions against defendants who violate the law" (internal quotation marks omitted)). That "quintessentially executive" power may not be cleaved off from the Executive Branch. *Seila Law*, 591 U. S., at 219.

The FTC unquestionably exercises executive power, and must therefore be controlled by the Chief Executive, in whom such power is vested. It follows, then, that Slaughter served as the President's subordinate at the FTC—and that the President was entitled to cut her tenure short.

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B

Because the FTC's activities fall well within the heartland of executive power, we have no occasion today to define the bounds of what such power entails. As our precedents recognize, not all offices created by Congress necessarily come with executive or even sovereign power attached. See, *e. g.*, *Buckley*, 424 U. S., at 137–138 (contrasting the "discretionary

[4] This is no empty threat. In just the last few years, the FTC has sought and secured civil penalties in the hundreds of millions and billions of dollars. See, *e. g.*, *FTC* v. *Amazon.com, Inc.*, No. 2:23–cv–00932 (WD Wash., Sept. 25, 2025), ECF Doc. 535, p. 8 (entering $2.5 billion judgment pursuant to the Restore Online Shoppers' Confidence Act); *United States* v. *Epic Games, Inc.*, No. 5:22–cv–00518 (EDNC, Feb. 7, 2023), ECF Doc. 15, p. 28 (entering $550 million judgment pursuant to the Children's Online Privacy Protection Act of 1998); *FTC* v. *Equifax Inc.*, No. 1:19–cv–03297 (ND Ga., July 23, 2019), ECF Doc. 6, pp. 27–31 (entering $425 million judgment pursuant to a rule issued under the Gramm-Leach-Bliley Act).

power to seek judicial relief" with powers "of an investigative and informative nature," which may "be regarded as merely in aid of the legislative function of Congress"). To suggest otherwise would come as a surprise to, among other congressionally chartered entities, the Boy Scouts of America, 112 Stat. 1325, the Society of American Florists and Ornamental Horticulturalists, ch. 876, 31 Stat. 1453, and Georgetown University, ch. 70, 6 Stat. 152.

Relatedly, we have left open the possibility that some functions traditionally handled outside the Executive Branch may not be encompassed by *Myers*'s general rule. Indeed, *Myers* itself placed "the greatest weight" on the early Congresses' (and early Presidents') "contemporaneous legislative exposition" of the Executive's constitutional role. 272 U. S., at 174–175. And one example we have given of an entity that may have such a unique role is the Federal Reserve, to the extent that it follows in the distinct historical tradition of the First and Second Banks of the United States—both of which influenced monetary policy and neither of which were subject to plenary Presidential control. See *Seila Law*, 591 U. S., at 222, n. 8. Our prior cases do not necessarily implicate the constitutionality of such arrangements. Our opinion today should not be read to do so either.

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Nor do we determine the fate of officials not before us. In particular, as the Solicitor General recognized at argument, the permissibility of tenure protections for the judges of "non-Article III courts," such as the Tax Court and the Court of Federal Claims, is not "presented" or "briefed" in this case and poses a "different set of questions." Tr. of Oral Arg. 15, 28. We leave those questions for another day. All we do today is recognize what has been clear for a century—that those who fall within the President's "general administrative control" must be removable by the President at will. *Myers*, 272 U. S., at 135.

IV

Although she disagrees with our conclusion, Slaughter at least accepts many of our premises. She agrees, for in-

stance, that officers with "purely executive functions," like the "postmaster in *Myers*," must be removable at will by the President. Tr. of Oral Arg. 93. She agrees that "*Seila Law* is correct." *Id.*, at 115. And she agrees that "the Vesting Clause of Article II . . . establish[es] a general default presidential removal power." *Id.*, at 136.

The dissent, on the other hand, sweeps the chess pieces off the board, rejecting not only *Free Enterprise Fund* and *Seila Law* but *Myers* and the Decision of 1789 as well. On its view, "there is no evidence that those who shaped or ratified the Constitution adopted the . . . general rule of at-will removal," *post*, at 492—no matter the view expressed by Washington, Jefferson, Madison, and Hamilton in the first years of the Republic; no matter the practice of the First Congress and all our early Presidents; and no matter the Convention's insistence upon "[u]nity in the Executive," 1 Farrand's Records 66 (J. Wilson).

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To support its own position, the dissent relies on two passing comments in The Federalist. See *post*, at 494–495. Neither one helps. In Federalist No. 39, Madison noted that the "tenure" of "ministerial offices . . . will be a subject of legal regulation," The Federalist No. 39, at 242, but it beggars belief to suggest that he intended so obliquely to permit Congress to hem in the President—it is far more likely that he intended only to endorse "regulation" of "tenure" in the sense of a limited term for executive officers, subject to Presidential removal in the interim.[5] And in Federalist No. 77,

[5] Indeed, that is precisely what Madison would propose a year later for the Comptroller of the Treasury. The dissent (quoting *Humphrey's*) thus errs in asserting that Madison ever "suggested" that Congress may "forbid Presidential removal" of the Comptroller. *Post*, at 484 (internal quotation marks omitted); see also *post*, at 501, 509, 521 (reiterating the point). As we have twice now explained, "Madison's actual proposal, consistent with his view of the Constitution, was that the Comptroller hold office for a term of 'years, unless sooner removed by the President'; he would thus be 'dependent upon the President, because he can be removed by him,' and also 'dependent upon the Senate, because they must consent to his [reappointment] for every term of years.'" *Free Enterprise Fund*, 561

Hamilton said that the Senate's consent "would be necessary to displace as well as to appoint," *id.*, No. 77, at 459, but it remains a subject of scholarly debate whether Hamilton meant "displace" in the sense of "remove" or "replace." Certainly the idea that the Senate could force a new President to keep his predecessor's Cabinet Secretaries is at odds with Hamilton's claim that the Senate "cannot themselves *choose*" who will fill an office, even "if they withheld their assent" to the President's pick, *id.*, No. 66, at 405; at odds with Hamilton's claim that the executive power is vested in "one man" and is not subject "to the control and co-operation of others," *id.*, No. 70, at 424; and at odds with Hamilton's claim that executive officers are "the assistants or deputies of the Chief Magistrate" and thus must "derive their offices from his . . . nomination" and remain "subject to his superintendence," *id.*, No. 72, at 436. Whatever Hamilton meant at first, by 1793 he had expressly recognized that "[t]he power of removal from office" forms part of "the EXECUTIVE POWER of the Nation . . . vested in the President." Pacificus No. 1 (June 29, 1793), in 15 Papers of Alexander Hamilton 39–40 (H. Syrett ed. 1969). We see little reason why one line (really one word) from Federalist No. 77 should take precedence over the logic of The Federalist as a whole.

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We certainly see no reason why it should take precedence over the Decision of 1789. When it comes to those debates, the dissent has little to offer, beyond its efforts to limit the decision's scope. Says the dissent: "The House in 1789 did not address whether Congress could place any limits on the President's power to remove," for it debated only whether the President had such a power "*at all*." *Post*, at 497–498. The two, however, are one and the same. In holding that the President has the power to remove his subordinates "without an express grant from Congress," *post*, at 499 (opinion of SOTOMAYOR, J.), Congress held that "the power of removal"

U. S., at 500, n. 6 (quoting 1 Annals of Cong. 612 (1789)); *Seila Law*, 591 U. S., at 227, n. 10 (same).

forms part of "the Executive power," 1 Annals of Cong. 382 (Rep. Clymer). And to the extent that the power of removal is part of the executive power, it is as much outside Congress's control as the President's power to grant pardons, veto bills, and recognize foreign sovereigns. See *Schick* v. *Reed*, 419 U. S. 256, 266 (1974) (a Presidential power that "flows from the Constitution . . . cannot be modified, abridged, or diminished by the Congress"); *Zivotofsky* v. *Kerry*, 576 U. S. 1, 29–32 (2015).

That is why no one at the time saw the First Congress as having endorsed merely a "default" "Presidential removal power" (if such a thing is not a contradiction in terms). *Post*, at 492, 500 (opinion of SOTOMAYOR, J.). Madison, in fact, said just the opposite. Because "the Executive power" vested in the President includes the power "to remov[e] . . . from office," he explained, "the Legislature has no right to diminish or modify" that power. 1 Annals of Cong. 463. Chief Justice Marshall agreed, explaining that the Decision of 1789 viewed the President's "power of removal" as "fixed in the constitution" and thus free from "legislative instability." 5 Marshall 200. The same was true for Justice Story, who said that the decision "expressed the sense of the legislature, that the power of removal by the executive [of principal officers] could not be abridged by the legislature." 3 Story § 1531, at 390, n. 1.[6]

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[6] Despite having led with Story, the dissent eventually tries to call it a draw. Compare *post*, at 481 (listing Story in the pantheon of jurists who supposedly would join today's dissenters), with *post*, at 501–502 (describing Story's position as "equivocal" and "unclear"). Story was in fact quite clear. He identified the very "question" at issue in this case: "[W]hether congress can give any duration of office in such cases [of principal officers], not subject to the exercise of this [Presidential] power of removal?" 3 Story § 1531, at 389. He then gave the First Congress's answer (as already quoted): "In the debate in 1789 . . . the very question was discussed; and the final vote seems to have expressed the sense of the legislature, that the power of removal by the executive could not be abridged by the legislature; at least, not in cases, where the power to appoint was not subject

With no support in the First Congress's actual debate on the subject, the dissent (this time joined by Slaughter) turns to three early agencies that it contends were "at least semi-independent." *Post*, at 503–504; see also Brief for Respondent 14–16. But the members of these agencies, too, were removable by the President at will. Indeed, the first of the three, the Revolutionary War Debt Commission, was composed solely of Presidential appointees, with a statute that did not purport to limit the President's power of removal. See Act of Aug. 5, 1790, ch. 38, 1 Stat. 178.[7] And the latter two, the Mint Board and the Sinking Fund Commission, were both composed mostly of Cabinet Secretaries, who (all agree) could be fired at any time. See Act of Apr. 2, 1792, 1 Stat. 250 (Mint Board); Act of Aug. 12, 1790, ch. 47, 1 Stat. 186 (Sinking Fund Commission). The only question arises as to one member of the Mint Board (the Chief Justice) and two members of the Sinking Fund Commission (the Chief Justice and the Vice President). Of course the President could not fire either one from his underlying position, but that did not mean that he was unable to oust them from service within the Executive Branch itself. See Bamzai & Prakash 1842–1843. It is true that the President could not "add a new Vice President or Chief Justice" to replace them, *post*, at 503, n. 10 (opinion of SOTOMAYOR, J.), but that poses no constitutional problem. Either way, the President remains responsible—if he chooses to keep them in office, he is respon-

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to legislative delegation." *Id.*, § 1531, at 390, n. 1. There is no shame in disagreeing with Story's appraisal of the Decision of 1789, but that is the reality of the dissent's position.

[7] Quoting a letter from Hamilton in which he described the Commissioners as "'distinct and Independant Officers,'" the dissent infers that they must not have been removable by the President. *Post*, at 504 (quoting 16 Papers of Alexander Hamilton 145 (H. Syrett ed. 1972)). Hamilton, however, said only that the Commissioners were "distinct and Independant" from "*[t]he Treasury*"—not the President. *Id.*, at 145 (emphasis added).

sible for their conduct; if he chooses to remove them, he is responsible for the conduct of those who are left. Certainly these examples do not show that the founding-era Congress thought that it could take away the President's power and give it to someone else, much less the Chief Justice or the Vice President.

With no support in the founding era as a whole, the dissent opts to skip ahead a century or two.[8] See *post*, at 489–490. "Today," the dissent notes, "dozens of agencies are headed by commissioners or board members removable only for cause," and "this longstanding practice" (it contends) "should be entitled to significant weight." *Ibid.* We have never endorsed such a practice-makes-perfect theory of congressional power, and in fact rejected it in *INS* v. *Chadha*, 462 U. S. 919 (1983). At issue in *Chadha* were the nearly 300 legislative vetoes adopted by the political branches over the course of 50 years—with more and more enacted each year. See *id.*, at 944–945. As we saw matters, however, the popularity of the congressional veto only "sharpened" our review. *Id.*, at 944. Such "'political invention[s]'" must remain subject to "the demands of the Constitution," we said, lest the political branches amend by agreement "integral parts of the constitutional design." *Id.*, at 945–946. We say the same today.

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[8] Searching for earlier precedents, the dissent attempts to enlist President Lincoln as an "active participa[nt]" in its cause. *Post*, at 490. It does so, however, based solely on a law "'adopted without discussion' during the heat of the Civil War and abandoned" only a year later, "before it could be 'tested by executive or judicial inquiry.'" *Seila Law*, 591 U. S., at 220 (quoting *Myers*, 272 U. S., at 165). It perhaps goes without saying, but Lincoln—whose contemporaries called him "Abraham Rex"; who called himself the "master" of his administration; and who told his appointees that he "must . . . be the judge, how long to retain in, and when to remove any . . . from his position"—likely did not see Presidential power the same way the dissent does. 2 M. Burlingame, Abraham Lincoln: A Life 55, 456, 657 (2008).

To bolster its reliance on modern practice, the dissent focuses on a modern case, *Humphrey's*.[9] But it defends a version of *Humphrey's* that does not exist. On the dissent's telling, *Humphrey's* makes this a "profoundly easy case," as *Humphrey's* squarely holds that Congress may "forbid Presidential 'removal'" "[f]or an agency of this 'character.'" *Post*, at 481, 484 (quoting *Humphrey's*, 295 U. S., at 631); see also *post*, at 480–481, 483–491, 506–509, 512–526 (relying on *Humphrey's*). Only halfway through a footnote does the dissent acknowledge that "*Humphrey's* described the FTC [in 1935] as sharing 'no part of the executive power,'" *post*, at 487, n. 1 (quoting *Humphrey's*, 295 U. S., at 628), which presumably forms part of an agency's "character." Nowhere does the dissent argue, however, that the FTC today exercises "no part of the executive power" or (to quote further from *Humphrey's*) that the FTC occupies "no place in the executive department" and ought to be "independent of executive authority." *Id.*, at 625, 628. The dissent may not keep the parts of *Humphrey's* it likes and discard the rest.

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[9] The dissent also invokes *Marbury* v. *Madison*, 1 Cranch 137 (1803), but that case has nothing to do with this one. It is true that Chief Justice Marshall held (as the dissent puts it) that "an office[r] with a 5-year fixed-term tenure was 'not removable at the will of the executive,'" *post*, at 506 (quoting *Marbury*, 1 Cranch, at 162), but the dissent ignores the fact that the "officer" in question was a justice of the peace in the District of Columbia. Such justices do not exercise executive power. They instead exercise the judicial power of the District, just as territorial judges exercise the judicial power of their respective territories. See *Sere* v. *Pitot*, 6 Cranch 332, 336–337 (1810) (Marshall, C. J., for the Court); *American Ins. Co.* v. *356 Bales of Cotton*, 1 Pet. 511, 545–546 (1828) (same); see also *Kendall* v. *United States ex rel. Stokes*, 12 Pet. 524, 619 (1838). The fact that Congress may prohibit the President from firing the District's judges (who do not exercise his power) says nothing about whether Congress may prohibit the President from firing his subordinates (who do). Indeed, Chief Justice Marshall must have thought as much, for he felt free to write just four years after *Marbury* that "the power of removal by the president . . . was by fair construction, fixed in the constitution," as determined by the Decision of 1789. 5 Marshall 200.

Indeed, the dissent's ode to *stare decisis* is hard to reconcile with its reinvention of *Humphrey's* and shabby treatment of *Myers*. At least we have accorded *Humphrey's* a respectful burial; the dissent would cast *Myers* aside without a second thought. See *post*, at 507–509 (denigrating *Myers*). It is entitled to propose as much, of course, but it can hardly claim the mantle of *stare decisis* in doing so.

When it comes to its own proposal for how precisely *Humphrey's* should work in practice, the dissent says very little. Slaughter, for her part, is left with the vague argument that we should police Congress's decisions for "reasonableness." "[I]f Congress reasonably decides that the President should be able to remove some duly appointed officers only for certain causes and through certain processes," she argues, the courts should respect that decision, and require that the President "discharge his obligations under the Take Care Clause by going through those processes when warranted." Brief for Respondent 25 (internal quotation marks omitted).

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That supposed limiting principle is neither limiting nor much of a principle. On Slaughter's view (and presumably the dissent's), Congress could commandeer the Environmental Protection Agency, the Department of Commerce, the Department of Education, the Department of Health and Human Services, most (if not at all) of the Department of Justice, and a number of other agencies besides. Indeed, it is not clear to us why Congress would need to allow the President any say in firings. If it is so "critical" for an agency "to have independence and to act with impartiality free from the suspicion of partisan direction," *id.*, at 22 (alterations and internal quotation marks omitted), then why should the President have a role at all? Certainly those legislators who disagreed with the Decision of 1789 were happy to leave him out. See 1 Annals of Cong. 521 (Rep. Sedgwick) (arguing that Congress may vest the removal power in "the President, the President and Senate,

or the Legislature, or any other person whom they might introduce into office, merely for that particular purpose").

The answer, then as now, is that these officers exercise the *President's* power, not their own, and thus must be *responsible* to him. We do not allow intrusions on Article I nor on Article III. See *INS* v. *Chadha*, 462 U. S. 919; *Stern* v. *Marshall*, 564 U. S. 462 (2011). We see no reason to allow intrusions on Article II either.

* * *

Our Constitution creates three branches, but only one President. That President is not all powerful—not by any means. See, *e. g.*, *Ex parte Milligan*, 4 Wall. 2 (1866); *Youngstown Sheet & Tube Co.* v. *Sawyer*, 343 U. S. 579 (1952); *United States* v. *Nixon*, 418 U. S. 683 (1974). But he is not impotent either. He and he alone is vested with "[t]he executive Power" of the United States. Art. II, § 1, cl. 1.

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To "discharg[e] the duties of his trust," the President must have the assistance of officers he can trust. 30 Writings of George Washington, at 334. Although it is up to the Senate to decide whether to confirm those with whom the President would *prefer* to work, neither Congress nor the courts may saddle him with those with whom he *cannot* work. Subordinates who exercise the President's power are subject to removal by him. Then, and only then, can they remain accountable to the President, and the President to the people.

The judgment of the United States District Court for the District of Columbia is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE GORSUCH, concurring.

To fulfill his constitutional duty to ensure the laws are faithfully executed, the Court holds, the President must have the ability to remove principal officers who exercise execu-